



Can AI judges be a viable alternative to human judges??



user_name
Placeholder



Natural law theory??

It can distort the essence of law

1. Subjectivity
2. Intellectual Confusion

-> Anarchy, Quietism



Are you interested in legal philosophy??

For evaluating AI judge's value, we should know what the essence of law is.

I will introduce two representative theories

(Maybe guys already know)

First is Natural law theory.

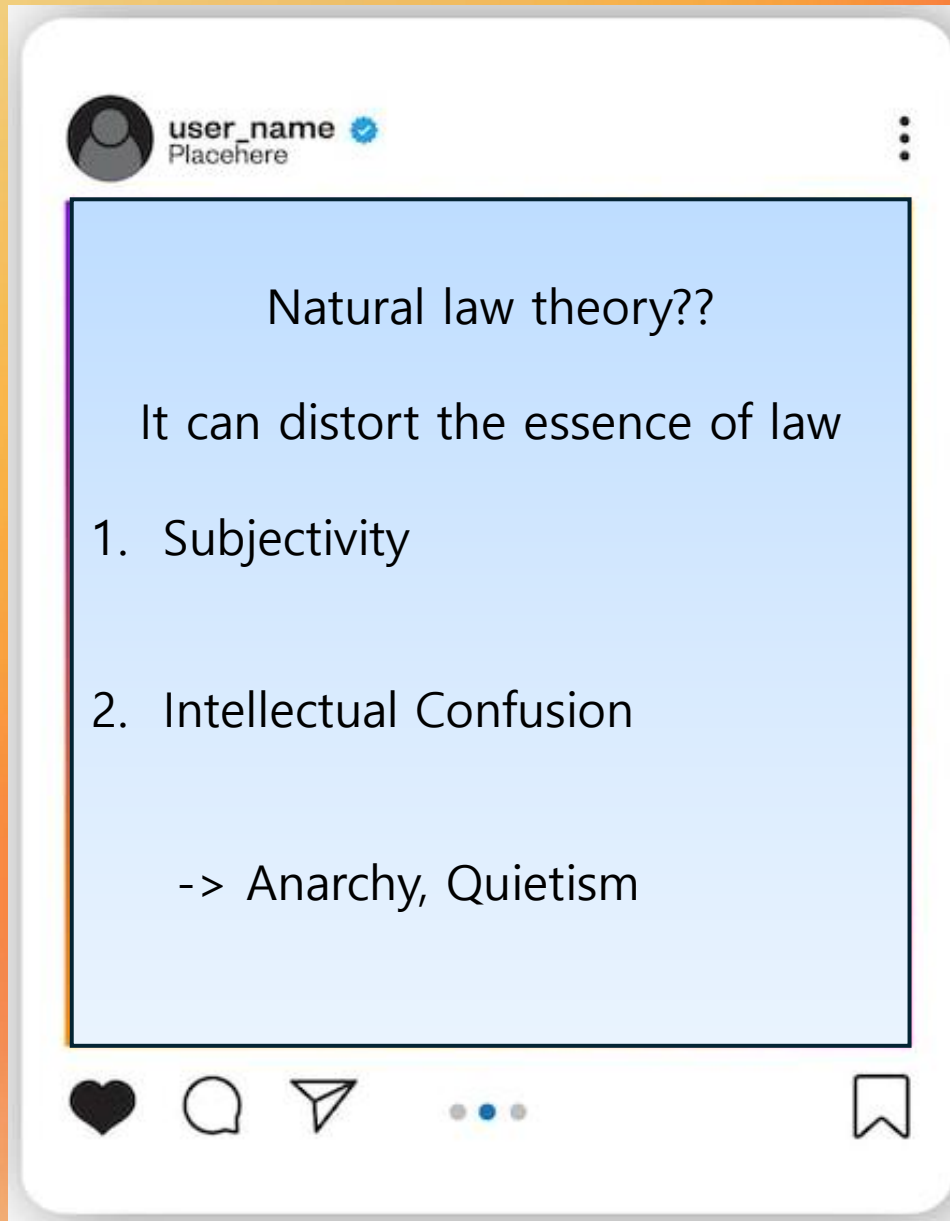
It asserts there are upper laws

than positive laws called as natural law.

In other words, it doesn't separate morality and law.

But, this is not recent academic and legal trend, and

It has many problems which can distort the essence of law.



The representative negative thing is subjectivity.

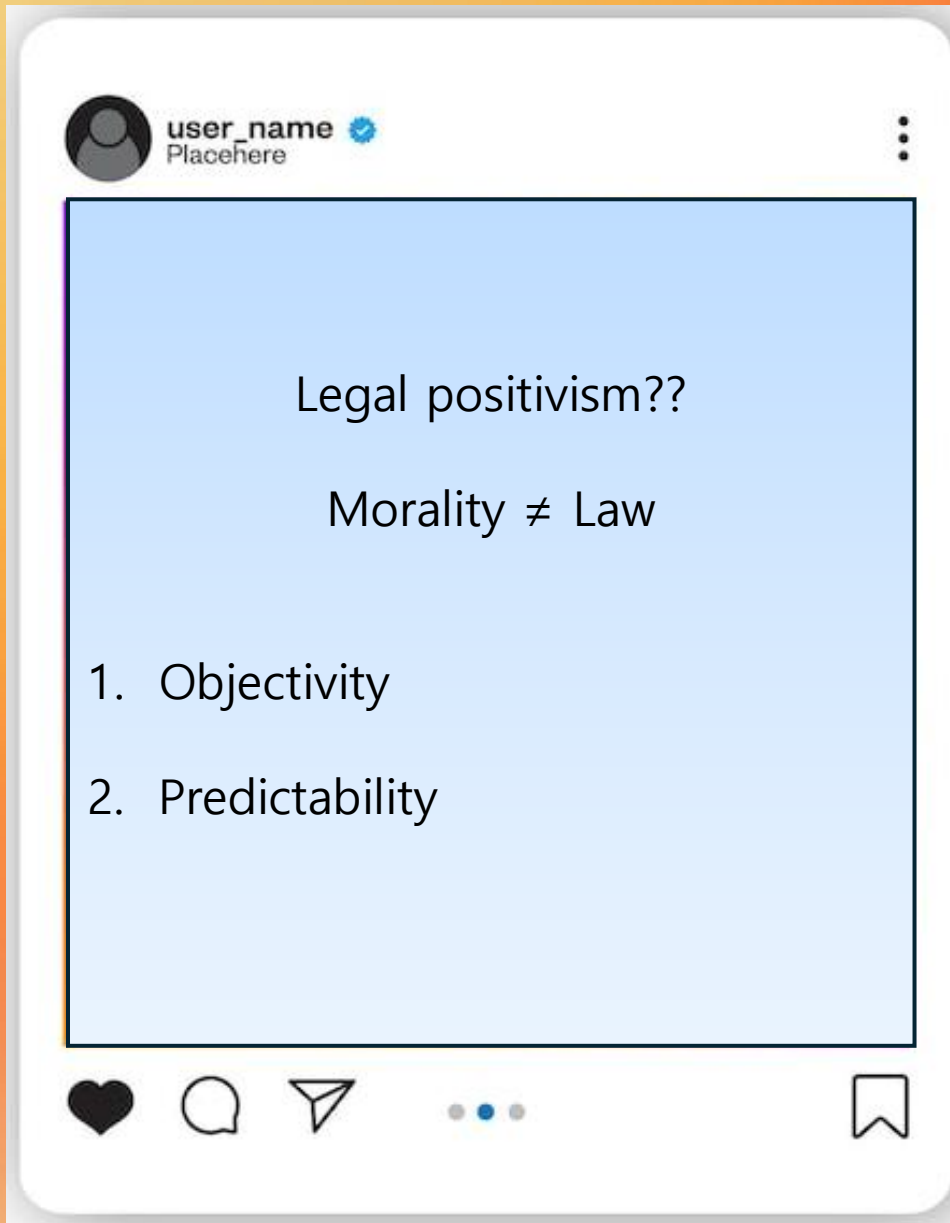
In other words, as natural law is not a specific clause, moral criteria for judging incidents is different for each person, and it means one of the law's important elements, objectivity, would disappear.

In conclusion, it can distort the value of law and it is not main theory of modern legal field.

Also, except this thing, I also introduced Hart's assertion for your interest at 2.

If you are interested in legal theory,

Researching this topic can be beneficial for you!



Second theory is legal positivism.

It is considered as the main theory of modern legal field as it has many good points which can realize the ideal law.

This theory's key point is to separate morality and law.

Some people can think there is no humanity in this one,

But, its trait such as objectivity and predictability is

evaluated the fundamental for making a society with a

stable rule of law. In other words, we can think

law is algorithms made by many precedents and command

like computer program by this theory.

Therefore, although this theory can not be perfect,

We can think this is much closer to the essence of law.

Next, we will deal with human judge's problems.

Although human judges tries to make fair judgments,

We can not ignore their inherent limitation.

Typically, I will introduce two things.

First is their unconscious bias.

It pointed out a long time ago as they are human

Not computer. Also, in some researches, IAT test

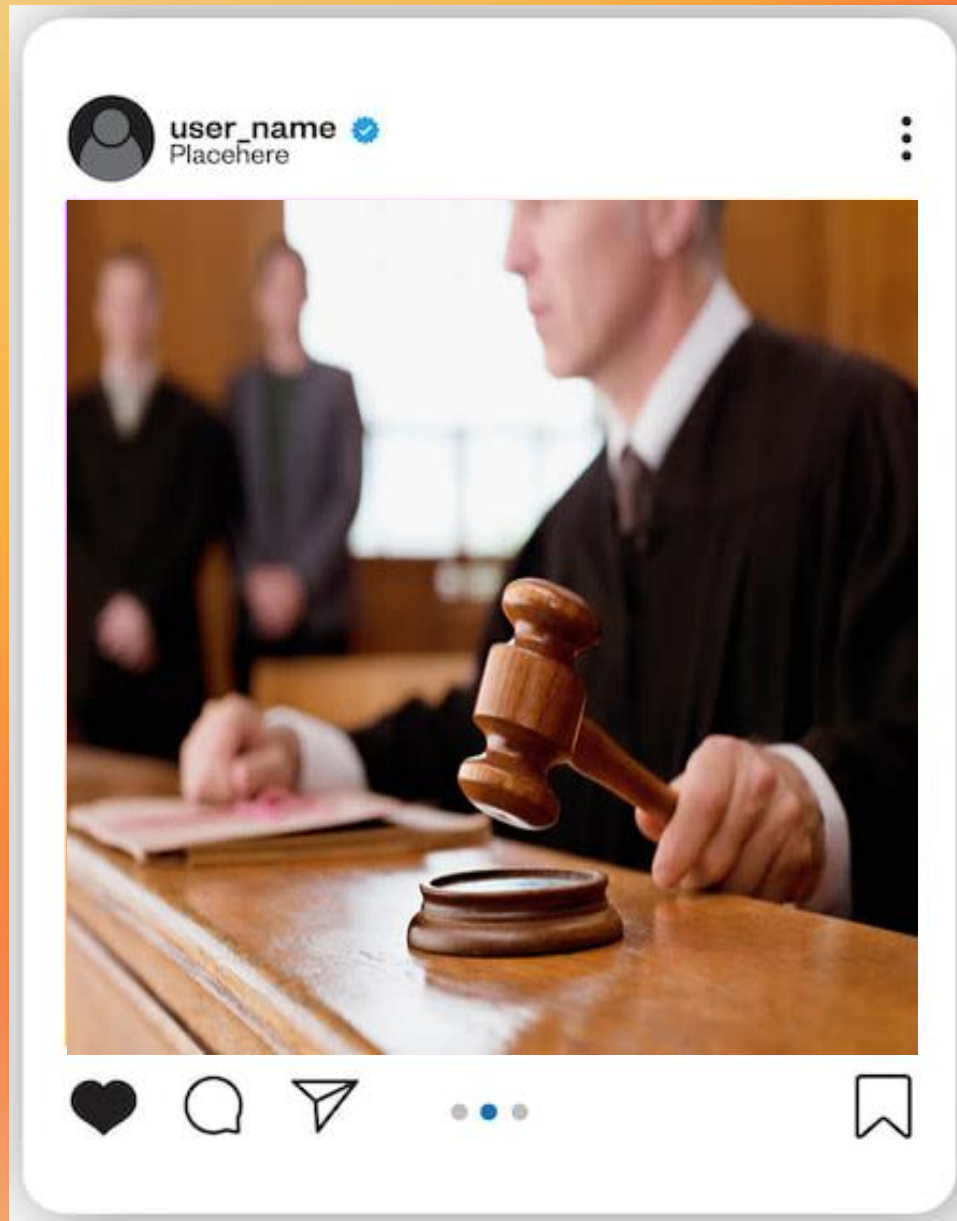
(a test for checking people's hidden bias) is used for

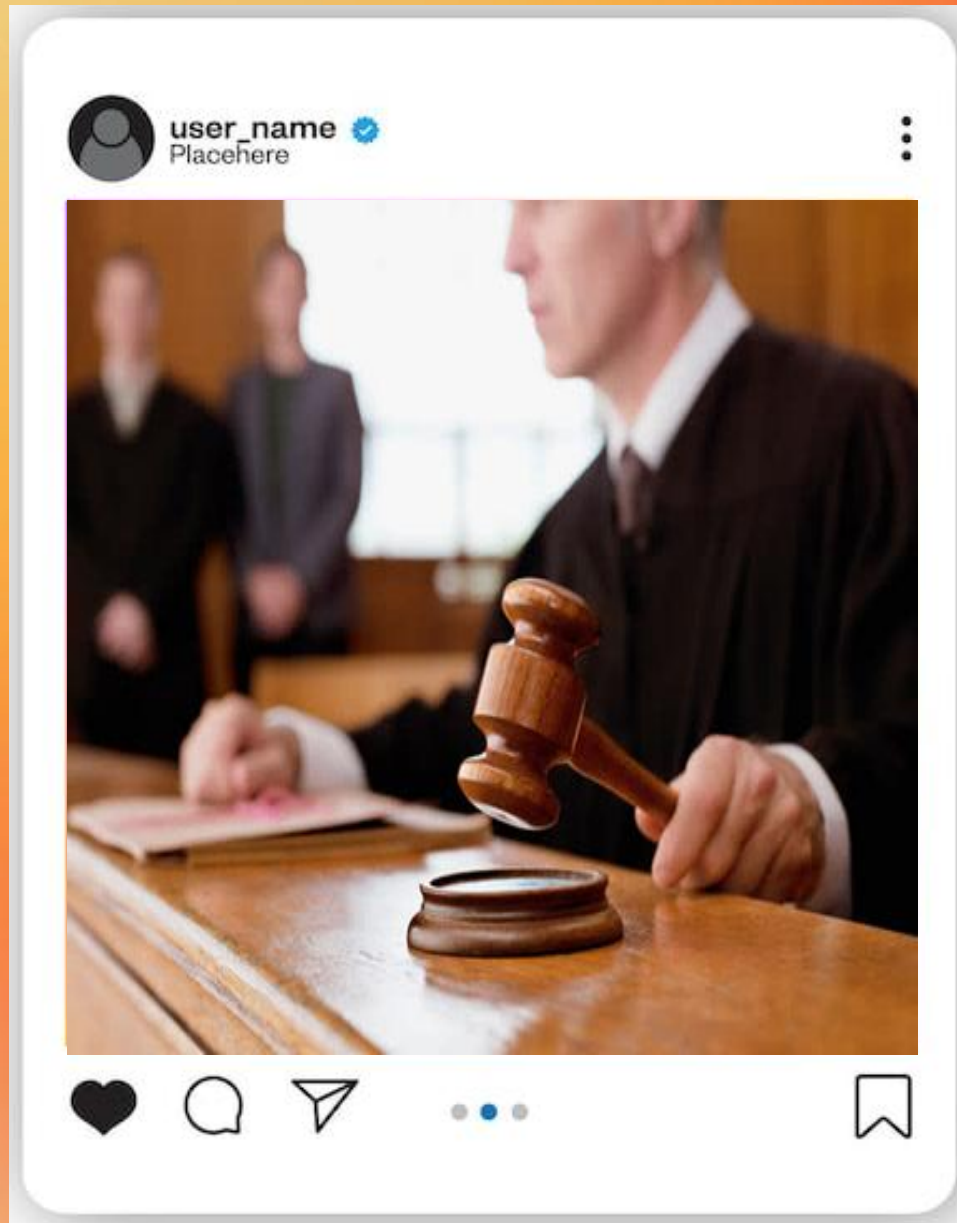
pointing out this problem as many people around

diverse job such as doctor have unconscious bias

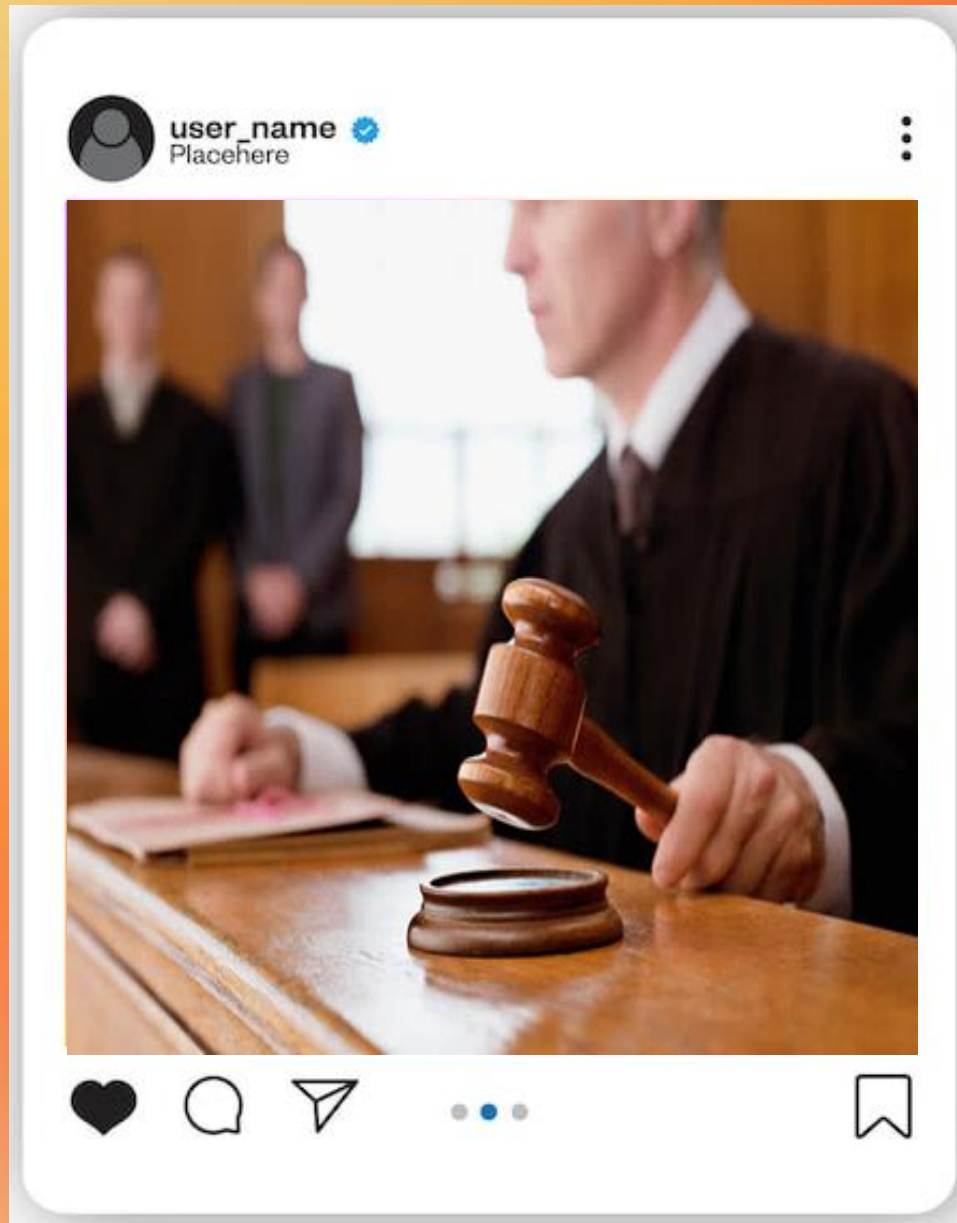
Based on people's race, gender etc. Like this,

it is hard to believe they don't have any bias
when making judgments.





Also, in recent US legal field, misusing of legal theory Becomes hot issue. For example, In US supreme court, there are controversy about judges as some judges or Organization have misused originalism for justifying their judgments. First, originalism is the extreme version Of legal positivism, and it only considers the situation When the law is established. Although this theory Points out to general public as it can not reflect current Society, some judges have misused this theory. Even, there are some statistics about that some conservative organization makes biased judgement Based on this theory.



Like this, there are some problems made by human judges

In our legal field. It can not only distort the essence of law

But also can decrease public's trust of judiciary.

Also, I will evaluate whether AI judges can be a viable

Alternative in the next section based on legal theory

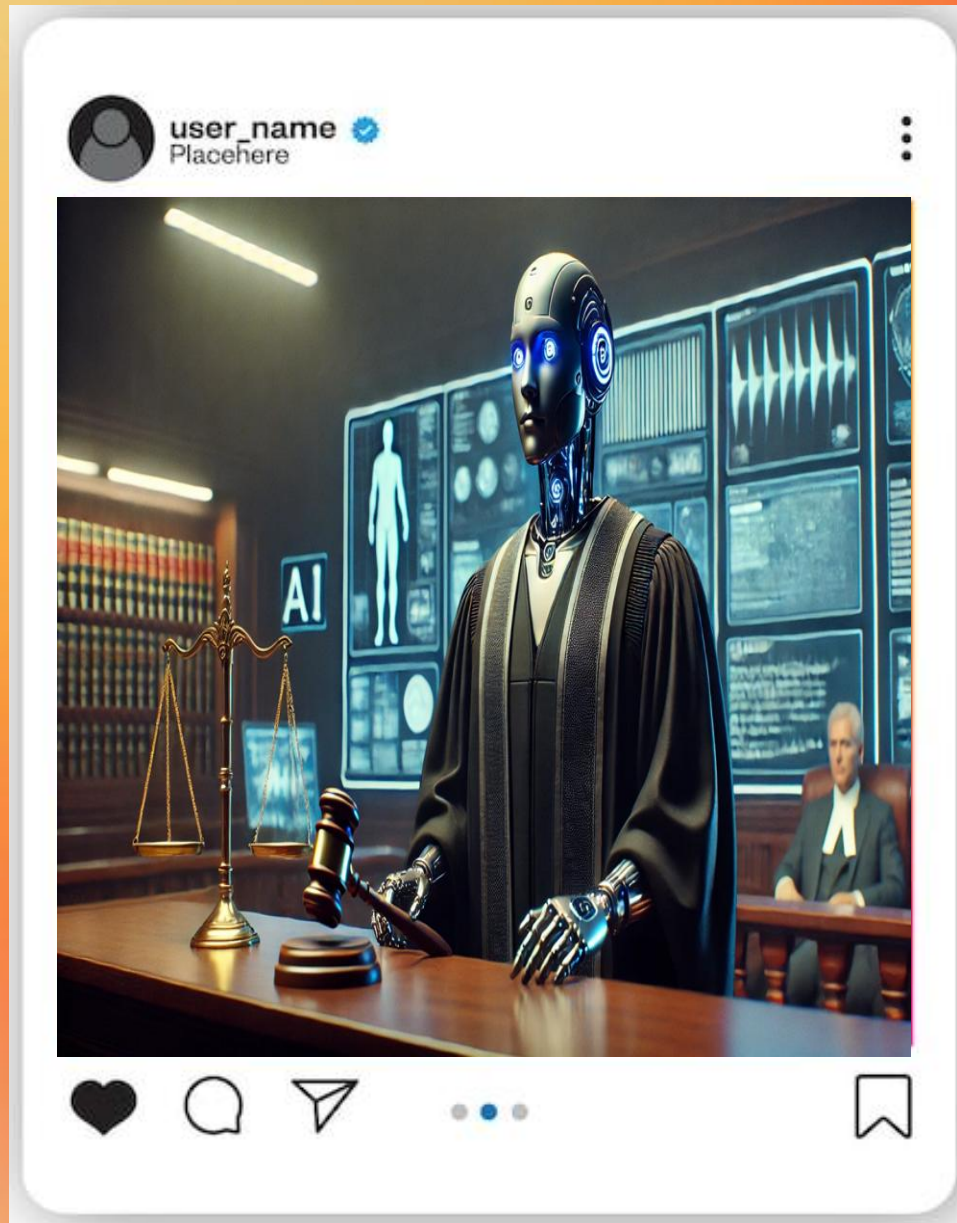
And current judge's problem.

Also, I add some links about judge's misusing of originalism

I expect this can be beneficial for you.

How the conservative Federalist Society will affect the Supreme Court for decades to come

Opposing Originalism | Brennan Center for Justice



Now, I will evaluate AI judges based on its trait and possibility for resolving current judge's problems.

First, AI judges have traits like this:

1. Algorithmic Mechanics

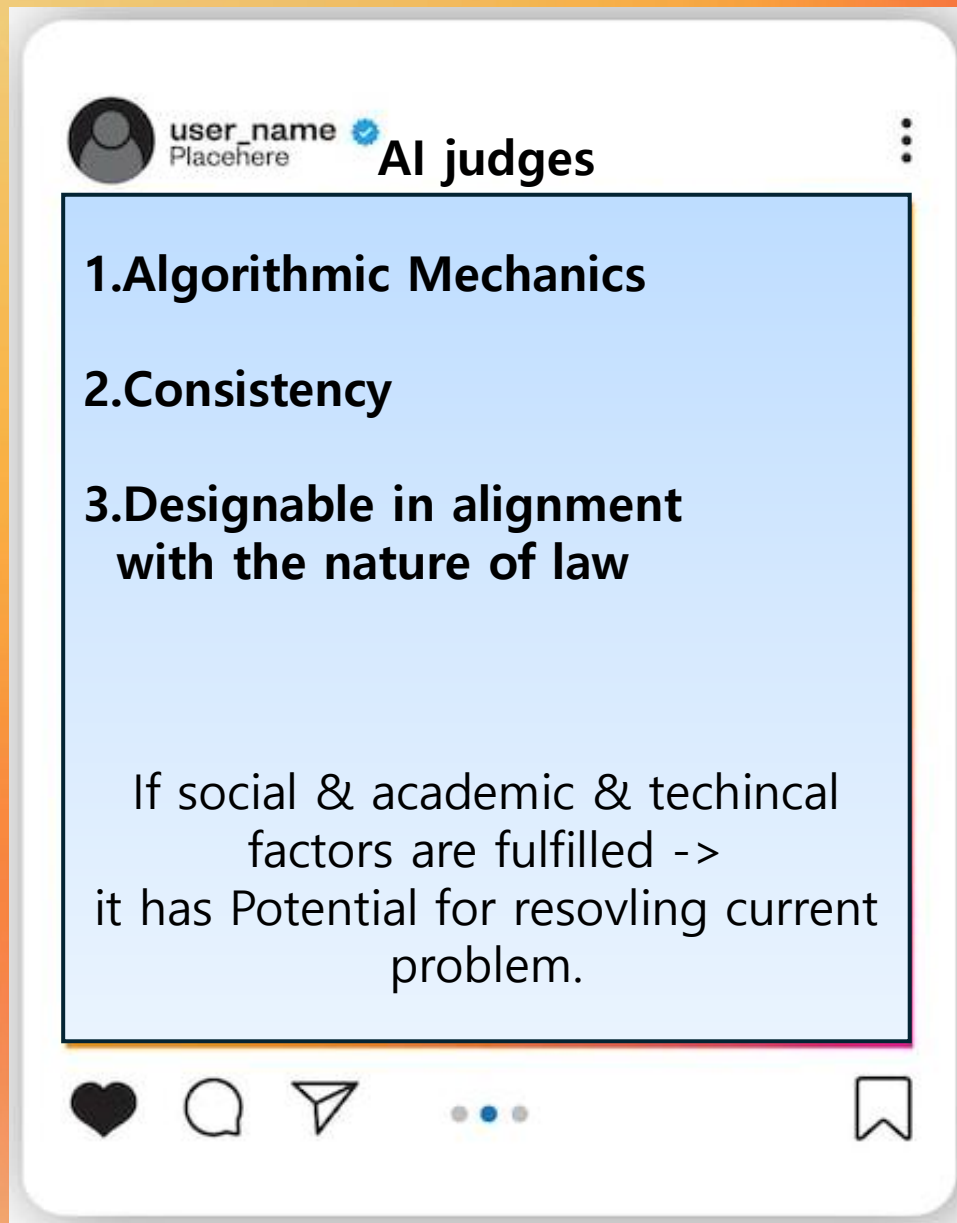
2. Consistency

3. Designable in alignment with the nature of law

First, designable thing gives us potential for making its algorithm based on theory evaluated as the best so far.

For making it algorithms, academic discussion will be necessary. Also, its consistency and algorithmic mechanics

have a potential for resolving Human judge's unconscious bias.



Although it also has bias when making judgment,
Considering its consistency and possibility
for developing tech,
It has enough potential. Also, I will introduce interesting
Thesis about simulation.

<https://doi.org/10.1371/journal.pone.0315270>

The simulation in this thesis is about the
Situation when AI judges is adopted and it analyzed
The impact based on short-mid-and long term.
In the conclusion, it asserts AI can be a viable alternative
if social monitoring by media and public is continued.



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AI judges



1. Algorithmic Mechanics

2. Consistency

3. Designable in alignment
with the nature of law

If social & academic & technical
factors are fulfilled ->
it has Potential for resolving current
problem.



I recommend you to read this thesis as it deals with
Interesting legal hot topics through simulation ways.

I think this thesis can be a evidence about AI's potential.

Overall, I think AI judges have a potential for resolving

Current problem if academic discussion, technical

Development and social monitoring are fulfilled.

AI is not perfect technology.

But, considering its potential, we need to discuss about

that. I hope this post can be opportunity for discussing

About AI judges, If you have any questions or want

Any discussion, please contact me Thank you.